

1 ENGROSSED HOUSE
2 BILL NO. 3678

By: Provenzano and McCane of
the House

3 and

4 Gillespie of the Senate

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7 An Act relating to crimes and punishments; amending
8 21 O.S. 2021, Section 1176, as last amended by
9 Section 10, Chapter 452, O.S.L. 2024 (21 O.S. Supp.
10 2025, Section 1176), which relates to the use of
11 electronic communication devices to threaten,
intimidate, or harass public officials; expanding
protection for municipal officials and public school
board members; modifying scope of certain definition;
and providing an effective date.

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14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 21 O.S. 2021, Section 1176, as
16 last amended by Section 10, Chapter 452, O.S.L. 2024 (21 O.S. Supp.
17 2025, Section 1176), is amended to read as follows:

18 Section 1176. A. Whoever, with the intent to threaten,
19 intimidate or harass, or facilitate another to threaten, intimidate
20 or harass, uses an electronic communication device to knowingly
21 publish, post or otherwise make publicly available personally
22 identifiable information of a peace officer, public official,
23 election official, medical care provider, or crime victim, and as a
24 result places that peace officer, public official, election

1 official, medical care provider, or crime victim in reasonable fear
2 of death or serious bodily injury shall, upon conviction, be guilty
3 of a misdemeanor punishable by imprisonment in the county jail for a
4 term not to exceed six (6) months, or by a fine not to exceed One
5 Thousand Dollars (\$1,000.00), or by both such fine and imprisonment.
6 Upon conviction for a second or subsequent violation, the person
7 shall be punished by imprisonment in the county jail for a term not
8 to exceed one (1) year, or by a fine not to exceed Two Thousand
9 Dollars (\$2,000.00), or by both such fine and imprisonment.

10 B. To the extent the provisions of ~~Section~~ subsection A of this
11 section apply to medical care providers, the protections provided
12 herein shall not apply when the incident is unrelated to the
13 provider's professional duties.

14 C. As used in this section:

15 1. "Crime victim" shall have the same meaning as defined in
16 Section 142A-1 of this title;

17 2. "Election ~~Official~~ official" means a member or employee of
18 the State Election Board or a county election board, the Secretary
19 of the State Election Board or a county election board, or a person
20 serving as a precinct official or absentee voting board member
21 appointed as required by law;

22 3. "Electronic communication" shall have the same meaning as
23 defined in Section 1172 of this title. Electronic communication
24

1 does not include broadcast transmissions or similar communications
2 that are not targeted at any specific individual;

3 4. "Electronic communication device" means any cellular
4 telephone, facsimile, pager, computer, or any device capable of
5 electronic communication;

6 5. "Medical care provider" means a doctor, resident, intern,
7 nurse, nurse practitioner, nurses' aide, ambulance attendant or
8 operator, paramedic, emergency medical technician, laboratory
9 technician, radiologic technologist, physical therapist, physician
10 assistant, chaplain of a health care facility, volunteer of a health
11 care facility, pharmacist, nursing student, medical student, member
12 of a hospital security force, and any other employee or contractor
13 working in or for a health care facility;

14 6. "Peace officer" shall have the same meaning as that term is
15 defined in Section 99 of this title;

16 7. "Personally identifiable information" means information
17 which can identify an individual including but not limited to name,
18 birth date, place of birth, mother's maiden name, biometric records,
19 Social Security number, official state- or government-issued driver
20 license or identification number, government passport number,
21 employer or taxpayer identification number or any other information
22 that is linked or linkable to an individual, such as medical,
23 educational, financial or employment information;

8. "Public official" means any person elected or appointed to a state office in the executive, legislative, or judicial branch of state government or other political subdivision of the state, including any person elected or appointed to a municipal office, authority, board or commission, or public school board; and

9. "Publish" means to circulate, deliver, distribute, disseminate, transmit, or otherwise make available to another person.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate